

THE HARBINGER OF PATENT PATRICIDE?

Paul Christopher Gray*

INTRODUCTION

Under the doctrine of double patenting, a patentee may not obtain more than one patent for the same invention.¹ A patentee also may not obtain a second patent for an obvious variation of a first invention unless the patentee disclaims any term beyond the expiration of the first patent's term.² Courts refer to the prohibition on the issuance of a second patent for an obvious variation of an earlier invention as "Obviousness-type Double Patenting" (ODP).³ In *In re Collect, LLC*, the Federal Circuit held that "ODP for a patent that has received [a Patent Term Adjustment (PTA)] . . . must be based on the expiration date of the patent after PTA has been added."⁴ In other words, if a patent is found to claim an obvious variation of an invention claimed in an earlier-expiring related⁵ patent held by the same patentee, the patentee must disclaim some or all of the patent's PTA or else the patent will be invalid for ODP.⁶ The question left open by *In re Collect, LLC*,⁷ however, was whether the Federal Circuit had opened the door to a practice labeled "patent

* J.D. Baylor University School of Law, 2025; B.S., Physics, The University of Texas at Austin, 2019. Thank you to Alicia and Stephen Gray, my parents, for your unending love and support. Thank you to my advisor, Professor David Henry, the staff of the *Baylor Law Review*, and the faculty of Baylor Law School. Thank you also to Randy and Debbie Fein and Brother Rob Clark, FMS, for all your guidance.

¹ *Gilead Scis., Inc. v. Natco Pharma Ltd.*, 753 F.3d 1208, 1212–14 (Fed. Cir. 2014).

² *Id.*

³ *See id.* at 1213 (noting that patents which claim "obvious variations of the same invention" is referred to as "obviousness-type double patenting").

⁴ 81 F.4th 1216, 1229 (Fed. Cir. 2023).

⁵ "Related" patents, which make up a "patent family," are those patents that issue from the same original application. *See* John R. Allison et al., *Valuable Patents*, 92 GEO. L.J. 435, 454 (2004) (referring to "related patents issued from the same original application" as a "patent family").

⁶ *See* Dominick Conde et al., *Could In re Collect Be the End of Patent Term Adjustments? The Federal Circuit Will Soon Tell Us*, IPWATCHDOG (Feb. 8, 2023, 12:15 PM), <https://ipwatchdog.com/2023/02/08/could-collect-end-patent-term-adjustments-federal-circuit-will-tell/id=156304/>.

⁷ 81 F.4th 1216.

patricide.”⁸ Patent patricide is the use of a later-filed child patent to invalidate an earlier-filed parent patent under ODP.⁹

Before the 1994 passage of the Uruguay Round Agreements Act¹⁰ (URAA), a patent’s enforceable term ran for seventeen years from its issue date.¹¹ Even if two or more patents claimed priority to the same earliest original application, the patents would naturally have different expiration dates if they had different issue dates.¹² Additionally, related patents in a family do not qualify as prior art references against each other.¹³ As a result, a patentee could “file successive continuations¹⁴ and obtain additional patent term for obvious modifications of its earlier claims where its earlier patents and applications did not qualify as prior art, and perhaps do so ad infinitum.”¹⁵ Courts and the Patent Office protected against such abuse by applying ODP, which prevents patentees from obtaining additional patent term by patenting obvious variations of earlier inventions.¹⁶

The URAA purported to eliminate the issue altogether by changing the measure of a patent’s term from seventeen years from its issue date to twenty years from the earliest filing date to which the patent claims priority.¹⁷ For two patents with different issue dates under the new URAA regime, if the patents claim priority to the same original application, the patents have the same expiration date regardless of their issue dates.¹⁸ As a result, successive continuations cannot generally create additional patent term because the URAA causes all patents in the same family to expire on the same day.¹⁹ This

⁸ Daniel Kazhdan, *Obviousness-type Double Patenting: Why it Exists and When it Applies*, 53 AKRON L. REV. 1017, 1018 (2019).

⁹ *Id.*

¹⁰ Uruguay Round Agreements Act, Pub. L. No. 103–465, 108 Stat. 4809, 4983–85 (1994) (codified at 35 U.S.C. § 154).

¹¹ *Gilead Scis., Inc. v. Natco Pharma Ltd.*, 753 F.3d 1208, 1217 (Fed. Cir. 2014) (Rader, C.J., dissenting).

¹² *Id.* at 1218; see Uruguay Round Agreements Act, § 154.

¹³ *Gilead Scis., Inc.*, 753 F.3d at 1217.

¹⁴ Continuation applications are applications filed under 35 U.S.C. § 120 that can use the filing date of a previously-filed application, entitling them to the benefit of an earlier prior art date. Mark A. Lemley & Kimberly A. Moore, *Ending Abuse of Patent Continuations*, 84 B.U. L. REV. 63, 68–69 (2004). Continuation applications are how “families” of related patents grow into highly developed portfolios.

¹⁵ *Gilead Scis., Inc.*, 753 F.3d at 1217.

¹⁶ *Id.*

¹⁷ *Id.* at 1211.

¹⁸ *Id.* at 1218.

¹⁹ *Id.*

would appear to partially obviate the need to apply ODP to patents within the same family.²⁰

However, in 1999, Congress created PTAs, which allow patents in the same family to have different expiration dates after the URAA.²¹ In *re Collect, LLC* answers the question of whether a difference in expiration date caused solely by a grant of PTA can allow an examiner or infringement defendant to challenge the patent under ODP.²² PTAs are increases in patent term granted under 35 U.S.C. § 154(b)(1) to compensate patentees for certain delays in prosecution by the United States Patent and Trademark Office (USPTO).²³ In the post-URAA context, PTAs are one of two statutory mechanisms by which patents which claim priority to the same original application will have different expiration dates.²⁴ In the pre-URAA context, ODP challenges between related patents would cause patentees to disclaim valuable patent term. Different issue dates led to different expiration dates within the same portfolio.²⁵ After *In re Collect*, ODP challenges between related patents will function in a similar manner. Patentees may find themselves disclaiming valuable patent term because of different PTA grants within the same portfolio.²⁶

The value of additional patent term is likely to continue to drive ODP litigation in the wake of *In re Collect*.²⁷ ODP challenges are likely to become

²⁰ See *id.*

²¹ See *id.* (“[A] double patenting issue may arise in limited instances based on changes to patent terms under 35 U.S.C. §§ 154, 156.”); Consolidated Appropriations Act of 2000, Pub. L. No. 106–113, 113 Stat. 1536, 1501A–557 (1999) (codified at 35 U.S.C. § 154(b)).

²² See 81 F.4th 1216, 1219–20 (Fed. Cir. 2023).

²³ 35 U.S.C. § 154(b)(1); *Patent Term Adjustment Data January 2024*, UNITED STATES PATENT AND TRADEMARK OFFICE, <https://www.uspto.gov/dashboard/patents/patent-term-adjustment.html> (last visited Mar. 23, 2024).

²⁴ See *In re Collect, LLC*, 81 F.4th at 1219–20 (“Because each family member patent claims priority from the same application, each would have expired on the same day but for the individual grants of PTA.”). The other mechanism for extending a patent’s term is a Patent Term Extension under 35 U.S.C. § 156. *Infra* Part II(A).

²⁵ See *Gilead Scis., Inc.*, 753 F.3d at 1217.

²⁶ Compare *Gilead Scis., Inc.*, 753 F.3d at 1217, with *In re Collect, LLC*, 81 F.4th at 1229.

²⁷ The value of additional term beyond the default expiration date of a patent varies between industries, but it may be greatest in the pharmaceutical industry. At least one study has examined the value of additional term for certain well-known drugs. Charles Clift, *The Value of Patent Term Extension to the Pharmaceutical Industry in the USA*, 5 J. GENERIC MED. 201 (2008). This study examines the value of Patent Term Extensions, which are distinct from Patent Term Adjustments. Both add valuable time to the default term of a patent. An average 3.6 years of term extension resulted in between \$1.4 billion and \$8.32 billion in revenue per drug for the 40 top selling drugs in

more common because although an earlier related patent is not prior art, it can now be an ODP reference against a later related patent which has received a longer grant of PTA.²⁸ Patent prosecutors will need to understand the ramifications of the new ODP landscape as they continue to develop portfolios. The Federal Circuit went on to hold that a later-filed, later-issued patent is not a valid ODP reference against a first-filed, first-issued patent, even if it expires earlier.²⁹ A different ruling would likely have caused a significant reduction in reliance on continuation applications.³⁰ Litigators will need to understand the doctrine as well, as they may make or encounter ODP challenges more frequently. A successful assertion of ODP as a defense in litigation could cause plaintiffs to limit their damages period or lose their patents altogether.³¹ Defendants will need to understand which patents are available as references and what arguments they might need to make to ensure their ODP challenges are effective.

Part I of this note is intended to give patentees and attorneys an understanding of the ODP doctrine, when it may apply, how it differs from more common challenges to a patent's validity, and the effects ODP has when raised in prosecution or litigation.³² Part II summarizes the holding of *In re Collect, LLC*, compares the PTA statute with the other statutory scheme for extending patent term, and explains how the holding is consistent with Congressional intent.³³ Finally, Part III addresses the next question resolved by the Federal Circuit: after *In re Collect*, could a child patent be used as an invalidating ODP reference against its parent? Before the Federal Circuit answered, "no," this billion-dollar question was forebodingly referred to as "patent patricide."³⁴

2006. *Id.* at 205–06. Moreover, 27% of the total \$298.2 billion in total revenue for all the 40 top selling drugs was earned during periods of term extension. *Id.* at 207.

²⁸ E.g., Eric T. Romeo et al., *In re Collect: Federal Circuit Opens New Path for Double Patenting Challenges*, GOODWIN (August 30, 2023), <https://www.goodwinlaw.com/en/insights/publications/2023/08/alerts-otherindustries-ip-in-re-collect-federal-circuit-opens-new-path>.

²⁹ See *infra* Part III(B) (discussing the subsequent ruling).

³⁰ See *infra* Part III(A) ("Applicants would have only used continuations to prosecute claims that the applicant could be sure were patentably distinct from earlier-claimed inventions.").

³¹ *Infra* Part I(2D).

³² *Infra* Part I.

³³ *Infra* Part II.

³⁴ *Infra* Part III; Kazhdan, *supra* note 8, at 1018.

I. OBVIOUSNESS-TYPE DOUBLE PATENTING

When an examiner or a court finds that a patent claim is unpatentable or invalid, the most common ground by far is either that the claim is not novel (or “anticipated”³⁵) under 35 U.S.C. § 102 or that the claim is obvious under 35 U.S.C. § 103.³⁶ Anticipation and obviousness are statutory bars to patentability which require their references to qualify as prior art.³⁷ A patent claim is invalid or unpatentable as anticipated when every element of the claimed invention is found explicitly or implicitly in a single prior art reference.³⁸ In the most common theory of obviousness, a patent claim is invalid or unpatentable as obvious if every element of the claim can be found in two or more prior art references and an examiner or defendant can articulate a basis on which a person of ordinary skill in the relevant art would be motivated to select and combine the references.³⁹

A patent claim may also be unpatentable or invalid under the doctrine of double patenting.⁴⁰ Unlike references under § 102 or § 103, a reference for double patenting need not be prior art.⁴¹ Rather, an appropriate reference for a double patenting challenge is a claim in an earlier commonly owned patent

³⁵ See *Verdegaal Bros. v. Union Oil Co. of Cal.*, 814 F.2d 628, 631 (Fed. Cir. 1987) (referring to the § 102 novelty analysis as an “anticipat[ion]” analysis).

³⁶ MPEP § 706.02 (9th ed. Rev. 1, Nov. 2024) (“By far the most frequent ground of rejection is on the ground of unpatentability in view of the prior art, that is, that the claimed subject matter is either not novel under 35 U.S.C. § 102, or else is obvious under 35 U.S.C. § 103.”).

³⁷ Under 35 U.S.C. § 102(a)(1), “prior art” is defined as patents, printed publications, public uses, sales, or other availability to the public before the effective filing date of the claimed invention.

³⁸ *Verdegaal Bros. Inc.*, 814 F.2d at 631 (Fed. Cir. 1987) (“A claim is anticipated only if each and every element as set forth in the claim is found, either expressly or inherently described, in a single prior art reference.”).

³⁹ E.g., *In re Kahn*, 441 F.3d 977, 984–86 (Fed. Cir. 2006). The Supreme Court has given more guidance on the rationales that would support a combination of prior art references to support a finding of obviousness. Acceptable rationales include an express teaching to combine in the prior art, known work in one field prompting variations in another field, and a finding that the claimed invention would be “obvious to try” in light of the prior art. *KSR Intern. Co. v. Teleflex Inc.*, 550 U.S. 398, 415–22 (2007).

⁴⁰ See MPEP § 804 (9th ed. Rev. 7, Feb. 2023).

⁴¹ *Id.* (“[A] double patenting reference . . . need not qualify as prior art[.]”); see generally 35 U.S.C. § 102(a)(1) (defining prior art as patents, printed publications, public uses, sales, or other availability to the public before the effective filing date of the claimed invention).

or patent application.⁴² Thus, patents in the same portfolio which claim priority to the same earliest filing date and therefore are not prior art against each other may still be appropriate references for double patenting.⁴³ There are two categories of double patenting.⁴⁴ Statutory double patenting finds its statutory root in 35 U.S.C. § 101, which states that an inventor is entitled to a single patent per invention.⁴⁵ A patent claim is invalid or unpatentable under statutory double patenting when the inventor claims the same invention in two different patents or patent applications.⁴⁶ The second type of double patenting is non-statutory double patenting, often referred to as “Obviousness-type Double Patenting” (ODP).⁴⁷

A patent claim is invalid or unpatentable under ODP when the claim is “patentably indistinct” from a claim in an earlier commonly owned patent or patent application.⁴⁸ ODP is a judicially created doctrine designed to prevent an unjustified timewise extension of the exclusionary right granted by a patent.⁴⁹ ODP is generally regarded as entirely non-statutory. However, to the extent that the courts have articulated a statutory basis for ODP, it is that ODP enforces the statutory term of a patent, protecting the “bedrock principle of our patent system that when a patent expires, the public is free to use not only the same invention claimed in the expired patent but also obvious or

⁴² In a challenge based on prior art, courts and examiners compare the content of the claim to the entire disclosure of the prior art reference, whether or not the content exists in a patent claim. For double patenting, only a claim in a patent or patent application can serve as a reference. *E.g.*, MPEP § 804 (9th ed. Rev. 07.2022, Feb. 2023) (“One significant difference is that a double patenting rejection must rely on a comparison with the claims in an issued patent or pending application, whereas an anticipation or obviousness rejection based on the same patent or application under 35 U.S.C. 102 or 103 relies on a comparison with what is disclosed (whether or not claimed) in the same issued patent or pending application. In a . . . rejection over a prior art patent, the reference patent is available for all that it fairly discloses to one of ordinary skill in the art, regardless of what is claimed.”).

⁴³ *See id.*

⁴⁴ MPEP § 804 (9th ed. Rev. 7, Feb. 2023) (“There are generally two types of double patenting rejections.”).

⁴⁵ *Id.* (“[T]he ‘same invention’ type double patenting rejection based on 35 U.S.C. § 101 . . . states in the singular that an inventor ‘may obtain a patent.’”); 35 U.S.C. § 101 (“Whosoever invents . . . may obtain a patent . . .”) (emphasis added).

⁴⁶ *Miller v. Eagle Mfg. Co.*, 151 U.S. 186, 198 (1894) (“[N]o patent can issue for an invention actually covered by a former patent, especially to the same patentee . . .”).

⁴⁷ MPEP § 804 (9th ed. Rev. 7, Feb. 2023) (“The second is the ‘non-statutory type’ double patenting . . .”).

⁴⁸ A discussion of “patentably indistinct” inventions is located *infra* Part I(A).

⁴⁹ *E.g.*, *Eli Lilly & Co. v. Barr Lab’ys, Inc.*, 251 F.3d 955, 967–68 (Fed. Cir. 2001).

patentably indistinct modifications of that invention.”⁵⁰ Much of this note concerns the appropriateness of a patent or application as an ODP reference. However, ODP always requires a finding that the examined or challenged claim is patentably indistinct from an invention claimed in the reference.⁵¹ Collect conceded indistinctness before the Patent Trial and Appeal Board (PTAB).⁵² Indistinctness was therefore not at issue before the Federal Circuit in *In re Collect, LLC*.⁵³ None the less, a brief illustration of patentable distinctness and the policy concerns of ODP is in order for a complete discussion of the doctrine.

A. Patentably Indistinct Inventions

A claim in a later patent is not patentably distinct from a claim in an earlier patent if the later claim is anticipated by or obvious over the earlier claim.⁵⁴ *Eli Lilly & Co. v. Barr Laboratories, Inc.* was an infringement action brought by the manufacturer of antidepressant Prozac.⁵⁵ Barr Labs had filed an Abbreviated New Drug Application (ANDA) with the Food and Drug Administration seeking to market fluoxetine hydrochloride as an antidepressant.⁵⁶ Eli Lilly & Co. sued Barr Labs under 35 U.S.C. § 271(e)(2)(A), claiming that Barr Labs’ ANDA infringed claims in two of Eli Lilly’s patents, including claim 7 of U.S. Patent No. 4,626,549 (‘549 patent).⁵⁷ In defense, Barr Labs claimed that claim 7 of the ‘549 patent was invalid for ODP because it was anticipated by claim 1 of U.S. Patent No. 4,590,213 (‘213 patent), which was also owned by Eli Lilly.⁵⁸

To begin its ODP anticipation analysis, the court first construed the claims as a matter of law in order to determine the differences between the claims.⁵⁹ Claim 1 of the ‘213 patent (the ODP reference) claimed a method for treating anxiety in humans by administration of fluoxetine, the active

⁵⁰ *Gilead Scis., Inc. v. Natco Pharma Ltd.*, 753 F.3d 1208, 1214 (Fed. Cir. 2014).

⁵¹ *E.g., Eli Lilly & Co.*, 251 F.3d at 968.

⁵² *In re Collect, LLC*, 81 F.4th 1216, 1225 (Fed. Cir. 2023) (“Collect does not dispute that . . . all challenged claims are patentably indistinct over claims in the reference patents.”).

⁵³ *Id.*

⁵⁴ *Eli Lilly & Co.*, 251 F.3d at 968.

⁵⁵ *Id.* at 958.

⁵⁶ *Id.*

⁵⁷ *Id.*

⁵⁸ *Id.* at 968.

⁵⁹ *Id.* at 967–69.

ingredient in Prozac.⁶⁰ Claim 7 of the '549 patent claimed a method of blocking the uptake of monoamines like serotonin by brain neurons in animals by administration of fluoxetine.⁶¹ The Court concluded that "the only difference between claim 1 of the '213 patent and claim 7 of the '549 patent is that the former addresses a method of treating anxiety in humans with fluoxetine hydrochloride while the latter claims a method of using fluoxetine hydrochloride to block serotonin uptake in animals."⁶² The court went on to determine whether these differences were enough to render the claims patentably distinct.⁶³

The Federal Circuit first concluded that "the natural result flowing from administration of fluoxetine hydrochloride is inhibition of serotonin uptake."⁶⁴ Therefore, this characteristic of claim 7 of the '549 patent was inherently included in claim 1 of the '213 patent.⁶⁵ Eli Lilly's own 1990 10-K filing with the Securities and Exchange Commission noted that serotonin uptake inhibition was the "process by which Prozac works" to treat anxiety and depression.⁶⁶ Three of Eli Lilly's experts noted in depositions that administration of fluoxetine hydrochloride caused inhibition of serotonin uptake.⁶⁷ Barr Labs's expert declared that "it is literally impossible to treat someone for anxiety . . . with fluoxetine hydrochloride without at the same time inhibiting serotonin reuptake."⁶⁸ Eli Lilly could not overcome Barr Labs' evidence that administration of fluoxetine hydrochloride naturally and inherently inhibited serotonin uptake.⁶⁹ The only other difference between the claims was that the reference claim was directed to humans and the challenged claim was related to animals.⁷⁰ Because the broader "animals" category (a genus) fully encompassed the "humans" category (a species), the court found that the earlier species claim anticipated the later genus claim.⁷¹

The disputed claim in the '549 patent was anticipated by the reference

⁶⁰ *Id.* at 962.

⁶¹ *Id.* at 960–61.

⁶² *Id.* at 969.

⁶³ *Id.*

⁶⁴ *Id.* at 970.

⁶⁵ *Id.* at 970.

⁶⁶ *Id.* at 969.

⁶⁷ *Id.* at 969–70.

⁶⁸ *Id.* at 970.

⁶⁹ *Id.*

⁷⁰ *Id.* at 971.

⁷¹ *Id.* ("Our case law firmly establishes that a later genus claim limitation is anticipated by, and therefore not patentably distinct from, an earlier species claim.").

claim in the ‘213 patent and was therefore not patentably distinct.⁷² Barr was entitled to summary judgment on double patenting.⁷³ In addition to anticipation,⁷⁴ a finding of obviousness will also suffice to render a claim patentably indistinct.⁷⁵ However, an obviousness analysis for ODP is different from an obviousness analysis under 35 U.S.C. § 103. In the ODP context, courts do not search for a motivation to modify the reference material, nor do courts consider any objective criteria suggesting non-obviousness.⁷⁶

B. Unjustified extension of term and harassment by multiple assignees

ODP is based in a policy against unjustified timewise extension of patent term and harassment by multiple assignees holding patents which claim indistinct inventions.⁷⁷ The courts have defined the extension of patent term that ODP is designed to protect against.⁷⁸ The term of a patent runs from its issue date until the date twenty years after the filing date of the earliest filed application to which the patent claims priority.⁷⁹ If a second commonly owned patent expires later than the first patent and claims an invention that

⁷² *Id.* at 971–72.

⁷³ *Id.* at 972.

⁷⁴ Genus-species relationships are common in ODP disputes where the question of distinctness is resolved on anticipation grounds. *E.g.*, *In re Berg*, 140 F.3d 1428, 1431 (Fed. Cir. 1998) (“[T]he ‘916 patent claim anticipates the application claim. The relationship of the application claim to the ‘916 patent claim, accordingly, is one of genus to species.”); MPEP § 804(II)(B)(2) (9th ed. Rev. 7, Feb. 2023) (“This type of [ODP] situation arises when the claim being examined is, for example, generic to a species or sub-genus claimed in a conflicting patent or application . . .”).

⁷⁵ *Eli Lilly & Co.*, 251 F.3d at 968 (“A later patent claim is not patentably distinct from an earlier patent claim if the later claim is obvious over . . . the earlier claim.”); *see also* *Procter & Gamble Co. v. Teva Pharms. USA, Inc.*, 566 F.3d 989, 999 (Fed. Cir. 2009) (“Having concluded that risedronate was not obvious under 35 U.S.C. § 103, we similarly conclude that the ‘122 patent is not invalid for obviousness-type double patenting.”).

⁷⁶ *Procter & Gamble Co.*, 566 F.3d at 999.

⁷⁷ *E.g.*, MPEP § 804 (9th ed. Rev. 7, Feb. 2023) (“The doctrine of double patenting seeks to prevent the unjustified extension of patent exclusivity beyond the term of a patent. . . . The doctrine of [ODP] also seeks to prevent the possibility of multiple suits against an accused infringer by different assignees of patents claiming patentably indistinct variations of the same invention.”); *see also* *In re Van Ornum*, 686 F.2d 937, 944–48 (C.C.P.A. 1982).

⁷⁸ *In re Van Ornum*, 686 F.2d at 945–46.

⁷⁹ 35 U.S.C. § 154(a)(2).

is not patentably distinct from the first invention, then the patentee obtains an extended exclusionary right to the first invention.⁸⁰

To illustrate, in *In re Vogel*, the rejected claims were directed to a method for packaging meat products so that the storage life of the products would be longer.⁸¹ The earlier-expiring reference patent claimed a similar method as the claim in the application, but the claims in the reference were limited to “pork products,” rather than meat products more broadly.⁸² Because “meat” encompassed “pork,” granting a full patent term to the later-expiring “meat” process would improperly extend the time monopoly of the “pork” process patented by Vogel.⁸³ Had the “meat” patent issued, protection of the “pork” process would have been extended to the later expiration date of the “meat” process because “meat” encompassed “pork.”⁸⁴

ODP also applies to prevent situations where multiple assignees of patents which claim indistinct variations of the same invention file multiple suits against the same accused infringer.⁸⁵ To illustrate, suppose the Vogel brothers had gained patent protection for their “meat” process and assigned the “meat” patent to another party. Vogel could sue an infringer for infringement of the “pork” process while the assignee could sue the same infringer for infringement of the “meat” process, even though the “meat” process was not a patentable improvement over the “pork” process.⁸⁶ The policy concern against harassment by multiple assignees has been regarded by the courts as “the more theoretical objection[] to double patenting.”⁸⁷ Most litigation related to the policy concern against harassment by multiple assignees occurs in the context of whether a terminal disclaimer can be filed

⁸⁰ *Eli Lilly & Co.*, 251 F.3d at 967.

⁸¹ 422 F.2d 438, 439–40 (C.C.P.A. 1970).

⁸² *Id.* at 440.

⁸³ *Id.* at 442–43.

⁸⁴ *See id.*

⁸⁵ *In re Van Ornum*, 686 F.2d 937, 948 (C.C.P.A. 1982) (holding that a regulation validly requiring common ownership of patents in order to obviate a non-statutory double patenting rejection was valid because the doctrine was intended to prevent the possibility of harassment by multiple assignees claiming patentably indistinct inventions).

⁸⁶ *See In re Vogel*, 422 F.2d at 439–40.

⁸⁷ *In re Griswold*, 365 F.2d 834, 840 n.5 (C.C.P.A. 1966).

obviate an ODP challenge or whether a terminal disclaimer has been violated.⁸⁸

C. Terminal Disclaimers in Prosecution

A terminal disclaimer will obviate an ODP rejection from the USPTO.⁸⁹ During the examination of a patent, the USPTO will issue ODP rejections even when the applications are commonly owned and will by default have the same expiration date.⁹⁰ For an examiner, the mere risk of an unjustified timewise extension of term or harassment by multiple assignees is enough to require an applicant to file a terminal disclaimer, so long as there is a finding that the claimed invention is patentably indistinct.⁹¹ Under 35 U.S.C. § 253, a patentee may disclaim a patent's entire term or any terminal part of its term.⁹² The USPTO has prescribed a disclaimer's form for overcoming ODP by rule.⁹³ By disclaiming any term of the later-expiring patent beyond the expiration of the earlier-expiring patent, the patentee guarantees that there will be no timewise extension of the first patent by the second.⁹⁴ A terminal disclaimer must also provide that the disclaimed patent will remain commonly owned with the reference or become unenforceable.⁹⁵ Terminal disclaimers are a routine and unremarkable

⁸⁸ *In re Van Ornum*, 686 F.2d at 948 (addressing the effectiveness of a terminal disclaimer when the patents are not commonly owned); *In re Fallaux*, 564 F.3d 1313, 1319 (Fed. Cir. 2009) (finding the harassment justification against ODP particularly applicable because the patents and applications at issue were not commonly owned); e.g., *MyPort, Inc. v. Samsung Elecs. Co. Ltd.*, No. 2:22-CV-000114-JRG, 2023 WL 5612445, at *6 (E.D. Tex. Aug. 30, 2023) (holding that the common ownership promise of a terminal disclaimer had not been broken and that the patent remained enforceable).

⁸⁹ *Ortho Pharm. Corp. v. Smith*, 959 F.2d 936, 940 (Fed. Cir. 1992) ("Unlike 'same-invention' double patenting, [ODP] can be overcome by filing a terminal disclaimer.").

⁹⁰ MPEP § 804.02(VI) (9th ed. Rev. 7, Feb. 2023) ("[S]ituations will often arise in which two copending applications subject to a provisional double patenting rejection will have the same patent term filing date, and thus, potentially will have the same patent term.").

⁹¹ *See id.*

⁹² 35 U.S.C. § 253(a).

⁹³ *Id.*; 37 C.F.R. § 1.321(c) (2024) (requiring a terminal disclaimer filed to overcome ODP to disclaim any term beyond the expiration of the reference and provide that any resultant patent must remain commonly owned or become unenforceable).

⁹⁴ *Ortho Pharm. Corp.*, 959 F.2d at 940.

⁹⁵ 37 C.F.R. § 1.321(c) (2024).

element of patent prosecution, with prosecutors regularly filing them to obviate ODP rejections.⁹⁶ As discussed *infra* Part III(B), with additional guidance from the Federal Circuit since *In re Cellect, LLC*, prosecutors should know that a later-filed continuation application is a likely candidate for disclaimer to an earlier-filed parent, but not vice-versa.⁹⁷

D. Terminal Disclaimers in Litigation

In the wake of *In re Cellect*, courts will likely see more ODP challenges in litigation.⁹⁸ Attorneys must understand how ODP and terminal disclaimers interact in litigation. Unlike the USPTO in examination, a court may require a showing of an actual timewise extension of patent term or lack of common ownership to find ODP.⁹⁹ For example, in *Zimmer Surgical, Inc. v. Stryker Corp.*, the court, without conducting full a ODP analysis, concluded that because the patents expired on the same day even before the filing of a terminal disclaimer, there was no ODP as a matter of law.¹⁰⁰ For those situations where the challenged patent expires later than the reference, terminal disclaimers may be filed post-grant, and they may be filed even after commencement of litigation in order to prospectively “supplant a finding of invalidity for double patenting.”¹⁰¹

However, the Federal Circuit has not decided whether a patentee can reinstate a patent’s validity by filing a terminal disclaimer after a finding of ODP.¹⁰² Thus, when faced with a credible ODP challenge, a plaintiff must consider whether to litigate the issue to its conclusion. If

⁹⁶ See 37 C.F.R. § 1.321(b) (2024).

⁹⁷ See *infra* Part III(B).

⁹⁸ E.g., Romeo, *supra* note 28.

⁹⁹ *Id.*

¹⁰⁰ 365 F. Supp. 3d 466, 485 (D. Del. 2019).

¹⁰¹ *Perricone v. Medicis Pharm. Corp.*, 432 F.3d 1368, 1375 (Fed. Cir. 2005); see also *Sessions v. Romadka*, 145 U.S. 29, 40 (1892) (“The power to disclaim is a beneficial one, and ought not to be denied except where it is resorted to for a fraudulent and deceptive purpose.”).

¹⁰² *In re Metoprolol Succinate Pat. Litig.*, 494 F.3d 1011, 1020 n.4 (Fed. Cir. 2007) (noting that it is unclear whether a terminal disclaimer can reinstate the validity of a patent during litigation).

the plaintiff litigates the ODP issue and loses, the patent is invalid.¹⁰³ The plaintiff has no guarantee that a terminal disclaimer will resurrect the patent.¹⁰⁴ On the other hand, the plaintiff may file a post-grant terminal disclaimer before the patent is invalidated.¹⁰⁵ However, doing so disclaims the term, which could reduce available damages either under *Georgia-Pacific*¹⁰⁶ or by effectively shortening the damages period if the patent was asserted near the end of its term.¹⁰⁷ The Federal Circuit also has not decided whether a post-grant terminal disclaimer will limit a patentee's damages period to the prospective period after the disclaimer was filed.¹⁰⁸ However, district courts that have encountered the issue have ruled that a terminal disclaimer has retroactive effect, allowing patentees to recover damages for the full damages period.¹⁰⁹

Finally, if the reference claim for ODP has expired, the challenged claim cannot be disclaimed.¹¹⁰ Patents frequently issue with multiple years of PTA.¹¹¹ If a patent with a grant of PTA is asserted in a lawsuit after its default expiration date, a defendant can likely find a related, expired patent on which to raise an ODP challenge.¹¹² Invalidity for ODP under these facts would be unavoidable with a terminal disclaimer, and the patentee loses the entirety of its patent term. This type of unsalvageable ODP challenge was the basis of *In re Collect*.

¹⁰³*E.g.*, *Eli Lilly & Co. v. Barr Lab'ys, Inc.*, 251 F.3d 955, 972 (Fed. Cir. 2001) (“[C]laim 7 is invalid for [ODP] . . .”).

¹⁰⁴*In re Metoprolol Succinate Pat. Litig.*, 494 F.3d at 1020 n.4.

¹⁰⁵*Perricone*, 432 F.3d 1368 at 1375.

¹⁰⁶318 F. Supp. 1116, 1120 (S.D.N.Y. 1970) (providing that the duration of the patent and term of a license are factors affecting the calculation of a reasonable royalty).

¹⁰⁷*See* 35 U.S.C. § 286 (providing for a damages period which extends six years into the past).

¹⁰⁸*See* *Tyco Healthcare Grp., LP v. C.R. Bard, Inc.*, 818 F. Supp. 2d 777, 783 (D. Del. 2011).

¹⁰⁹*E.g.*, *Asyst Techs., Inc. v. Empak, Inc.*, No. C 98-20451 JF, 2006 WL 3780709, at *6 (N.D. Cal. Dec. 20, 2006); *Tyco Healthcare Grp.*, 818 F. Supp. 2d at 783 (overruling a defendant's argument that the effect of a terminal disclaimer is to allow recovery only after the date to which term is disclaimed).

¹¹⁰*Boehringer Ingelheim Intern. GmbH v. Barr Lab'ys, Inc.*, 592 F.3d 1340, 1348 (Fed. Cir. 2010) (“We therefore hold that a terminal disclaimer filed after the expiration of the earlier patent . . . cannot cure obviousness-type double patenting.”).

¹¹¹Kazhdan, *supra* note 8, at 1046 (“[P]atents often have *years* of PTA.”).

¹¹²A plaintiff can collect damages for up to six years post-expiration because the statutory damages period extends six years into the past. 35 U.S.C. § 286.

II. IN RE COLLECT, LLC: THE FEDERAL CIRCUIT RETURNS ODP TO INDIVIDUAL PATENT PORTFOLIOS

Collect sued Samsung in the District of Colorado and asserted eleven patents relating to complementary metal-oxide semiconductor image sensors, which are common components in products with compact cameras such as smartphones.¹¹³ Samsung successfully petitioned for institution of several *Inter Partes* Reviews¹¹⁴ and requested *Ex Parte* Reexaminations of Collect's asserted patents.¹¹⁵ The District Court stayed the litigation pending resolution of the Patent Office proceedings.¹¹⁶ During the Reexaminations, the examiner rejected claims in four of Collect's patents under ODP.¹¹⁷ All of the patents were members of the same family sharing the same priority date. By default, the patents would all expire on the same day but for different grants of PTA.¹¹⁸ All of the patents had expired,¹¹⁹ so Collect could not file a terminal disclaimer to obviate the rejections.¹²⁰ Thus, a finding of ODP would permanently invalidate the patents.

Collect appealed the rejections to the Patent Trial and Appeal Board (PTAB).¹²¹ It conceded that the claims were indistinct but argued that the appropriate dates for an ODP analysis were the default expiration dates of the claims and not the expiration dates after grants of PTA.¹²² Under Collect's

¹¹³Collect LLC v. Samsung Elecs. Co., Ltd., No. 19-cv-00438-CMA-MEH, 2020 WL 3425166, at *1 (D. Colo. June 23, 2020).

¹¹⁴An *Inter Partes* Review (IPR) is a trial procedure at the USPTO that cannot be instituted on ODP grounds. 35 U.S.C. § 311 (requiring an IPR to be instituted strictly under § 102 or § 103). Collect's ODP challenges were raised in their requests for *Ex Parte* Reexamination. 35 U.S.C. § 303 (requiring only a "substantial new question of patentability" to initiate reexamination).

¹¹⁵Collect LLC, 2020 WL 3425166, at *1.

¹¹⁶*Id.* at *1, *7; Any person may file a request for reexamination by the patent office. 35 U.S.C. § 302. The USPTO will determine whether the requesting party has raised a substantial new issue of patentability, and if it has, the USPTO will order reexamination. 35 U.S.C. §§ 303, 304. Reexaminations of issued patents proceed *ex parte* as initial examinations do.

¹¹⁷*Ex Parte* Collect LLC, No. 2021005258 (P.T.A.B. Dec. 1, 2021) ("Four of the reexaminations involve substantially similar issues on double patenting.").

¹¹⁸*In re Collect, LLC*, 81 F.4th 1216, 1219 (Fed. Cir. 2023).

¹¹⁹*Id.*

¹²⁰*See* Boehringer Ingelheim Intern. GmbH v. Barr Lab'ys, Inc., 592 F.3d 1340, 1348 (Fed. Cir. 2010) ("We therefore hold that a terminal disclaimer filed after the expiration of the earlier patent . . . cannot cure obviousness-type double patenting.").

¹²¹*In re Collect, LLC*, 81 F.4th at 1219 ("Collect, LLC appeals from four *ex parte* reexamination decisions of the [PTAB] . . .").

¹²²*Id.* at 1221, 1225 ("Collect does not dispute that . . . all challenged claims are patentably indistinct over claims in the reference patents.").

proposed rule, there would be no unjust extension of patent term because related patents have the same default expiration date.¹²³ Collect's final argument was that without unjustified timewise extension of patent term and without a risk of harassment by multiple assignees,¹²⁴ the policy motivations justifying ODP rejections were vindicated and the rejections should be overruled without need for a terminal disclaimer.¹²⁵ The Federal Circuit rejected Collect's arguments and held that the relevant dates for an ODP analysis are the expiration dates after any grant of PTA.¹²⁶ With a finding of an unjust extension of patent term under this rule, the Federal Circuit affirmed the PTAB's ODP rejections.¹²⁷

A. The Federal Circuit distinguishes Patent Term Adjustments from Patent Term Extensions

In affirming PTAB's rulings the Federal Circuit adopted its reasoning that Patent Term Adjustments are distinct from Patent Term Extensions (PTEs).¹²⁸ PTAs are added to a patents in order to compensate diligent applicants for delays in prosecution by the USPTO.¹²⁹ After Congress passed the URAA and changed the measure of a patent's term to 20 years from the earliest effective filing date delays in prosecution by the USPTO could cut short a patent's enforceable term.¹³⁰ In response, Congress created PTAs in 1999 to compensate patentees for USPTO delays.¹³¹ In contrast, a PTE will extend the term of a patent by up to five years where the claimed invention, usually a pharmacological compound and/or treatment method, cannot be marketed until after a term of regulatory review and approval, most commonly by the FDA.¹³² PTEs were created by the Drug Price Competition

¹²³*See id.* at 1219.

¹²⁴Collect also argued that there was no actual harassment by multiple assignees. *Id.* at 1229.

¹²⁵*Id.*

¹²⁶*Id.*

¹²⁷*Id.* at 1229–31.

¹²⁸*Id.* at 1227–29.

¹²⁹145 CONG. REC. S14718 (daily ed. Nov. 17, 1999) (“[S]ubtitle D . . . adds a new provision to compensate applicants fully for USPTO-caused administrative delays, and, for good measure, includes a new provision guaranteeing diligent applicants at least a 17-year term . . .”).

¹³⁰*See id.* (“[N]o patent applicant diligently seeking to obtain a patent will receive a term of less than the 17 years as provided under the [previous] standard . . .”).

¹³¹*Id.*; Consolidated Appropriations Act of 2000, Pub. L. No. 106–113, 113 Stat. 1536, 1501A–557 (1999) (codified at 35 U.S.C. § 154(b)).

¹³²*Merck & Co., Inc., v. Hi-Tech Pharmacal Co., Inc.*, 482 F.3d 1317, 1320 (Fed. Cir. 2007).

and Patent Term Restoration Act of 1984 (the “Hatch-Waxman Act”) and are codified at 35 U.S.C. § 156.¹³³

In *Merck & Co., Inc. v. Hi-Tech Pharmacal Co.*, the Federal Circuit rejected Hi-Tech’s argument that Merck had disclaimed its PTE by filing a terminal disclaimer.¹³⁴ It held that a terminal disclaimer does not cut off a PTE and that if a patent has a terminal disclaimer, the PTE will extend the term of a patent past the date of the disclaimer.¹³⁵ The Federal Circuit decided *Novartis AG v. Ezra Ventures LLC* as a logical extension of its holding in *Merck*.¹³⁶ In *Novartis*, the Federal Circuit recognized that “if a patent is terminally disclaimed to another patent to overcome an [ODP] rejection and then [receives a PTE] (as in *Merck*), it necessarily will expire after the patent to which it had been subject to an [ODP] rejection.”¹³⁷ In other words, a PTE effectively extends the term of the ODP reference, which is the type of term extension normally disallowed by ODP.¹³⁸

However, the Federal Circuit held that such an extension of patent term was statutorily authorized by the text of § 156.¹³⁹ Thus, an ODP analysis where the patent has a PTE is based on the expiration date of the patent before addition of the PTE.¹⁴⁰ But in direct contrast to the PTE statute, the PTA statute expressly precludes a PTA from extending a patent’s term beyond the date of a terminal disclaimer.¹⁴¹ Consistent with the Federal Circuit’s approach in *Merck* and *Novartis*, the court in *In Re Collect* held that because the PTA statute forbids adjustment past the date of a disclaimer, an ODP analysis must be applied based on the expiration date after a grant of PTA.¹⁴²

B. In re Collect, LLC properly preserves Congressional intent

The Federal Circuit’s holding in *In re Collect* vindicates Congress’s intent that patentees should not be able to claim patentably indistinct inventions without disclaiming additional patent term beyond the expiration

¹³³*Id.*; see generally 35 U.S.C. § 156.

¹³⁴See 482 F.3d at 1321–23.

¹³⁵*Id.* at 1324.

¹³⁶See 909 F.3d 1367, 1369 (Fed. Cir. 2018) (alteration in original).

¹³⁷*Id.* at 1374.

¹³⁸See *id.*

¹³⁹*Id.* at 1375.

¹⁴⁰*Id.*

¹⁴¹35 U.S.C. § 154(b)(2)(B).

¹⁴²See *In re Collect, LLC*, 81 F.4th 1216, 1228–29 (Fed. Cir. 2023).

of an earlier-expiring reference.¹⁴³ Most arguments against *In re Collect* center around the Federal Circuit's statement in *Novartis v. Ezra* that a "judge-made doctrine could not cut off a statutorily-authorized extension of time."¹⁴⁴ But 35 U.S.C. § 154(b)(2)(B) is very clear that a PTA cannot extend a patent's term beyond the date of a disclaimer.¹⁴⁵ If a patent is invalid for double patenting, the entire term is invalid, including any addition of PTA or PTE.¹⁴⁶ Only a terminal disclaimer will cure ODP invalidity.¹⁴⁷ Once the disclaimer is applied to a patent which has or would receive a grant of PTA, 35 U.S.C. § 154(b)(2)(B) will control, and the patent is no longer entitled to a PTA beyond the date of the disclaimer.¹⁴⁸

III. IN RE COLLECT, LLC: HARBINGER OF PATENT PATRICIDE?

In re Collect confirms that ODP will apply between patents in the same family because of different grants of PTA.¹⁴⁹ This mirrors the pre-URAA context, where related patents were subject to ODP challenges because they naturally had different expiration dates if they had different issue dates.¹⁵⁰ Following *In re Collect*, the remaining question was whether the Federal Circuit had opened the door to "patent patricide," where a later-filed child patent could be used as a potentially invalidating ODP reference against an earlier-filed parent patent.¹⁵¹ The filing dates were immaterial in *In re Collect*, but the result of the case demanded resolution of the issue. In Appeal 2021-005302, the PTAB held that the reference patent was an appropriate reference

¹⁴³*Id.* at 1229 ("[I]t would frustrate the clear intent of Congress for applicants to benefit from their failure, or an examiner's failure, to comply with established practice concerning ODP, which contemplates terminal disclaimers as a solution to avoid invalidation of patents claiming obvious inventions, as we have here.").

¹⁴⁴*Novartis AG*, 909 F.3d at 1375 ("Here, agreeing with *Ezra* would mean that a judge-made doctrine would cut off a statutorily-authorized time extension."); Brief for Pharmaceutical Research and Manufacturers of America (PhRMA) as Amicus Curiae at 13, *In re Collect, LLC*, 81 F.4th 1216 (Fed. Cir. 2023) (No. 22-1293); Corrected Brief for Intell. Prop. Owners Ass'n as Amicus Curiae in Support of Appellant at 6, *In re Collect, LLC*, 81 F.4th 1216 (Fed. Cir. 2023) (No. 22-1293).

¹⁴⁵*See* 35 U.S.C. § 154(b)(2)(B).

¹⁴⁶*See Novartis AG*, 909 F.3d at 1374 ("[I]f a patent, under its pre-PTE expiration date, is valid under all other provisions of law, then it is entitled to the full term of its PTE.").

¹⁴⁷*In re Van Ornum*, 686 F.2d 937, 944 (C.C.P.A. 1982).

¹⁴⁸35 U.S.C. § 154(b)(2)(B).

¹⁴⁹81 F.4th at 1219 ("Because each family member patent claims priority from the same application, each would have expired on the same day but for the individual grants of PTA.").

¹⁵⁰*Gilead Scis., Inc. v. Natco Pharma Ltd.*, 753 F.3d 1208, 1217 (Fed. Cir. 2014).

¹⁵¹*Kazhdan*, *supra* note 8, at 1018.

against the challenged patent because the reference patent expired earlier.¹⁵² However, the PTAB gave no consideration to the fact that the reference patent had been filed two years later than the challenged patent.¹⁵³ The challenged patent in Appeal 2021-005046 was also invalidated using a later-filed reference.¹⁵⁴ In the other appeals, the reference patents were filed earlier than the challenged patents.¹⁵⁵ Neither the PTAB nor the Federal Circuit gave any consideration to the filing dates in any of the appeals, and the result was that some patents were invalidated over earlier-filed references while others were invalidated over later-filed references.¹⁵⁶

During examination of a later-filed application, the examiner will have the benefit of the earlier-filed application being on file at the USPTO and can accordingly raise a prior art rejection or a double patenting rejection.¹⁵⁷ However, during the examination of an earlier-filed application, the later-filed application may not have been filed, and it may not be filed until after the earlier-filed application issues as a patent.¹⁵⁸ As such, an earlier-filed patent may not be scrutinized for ODP over a later-filed patent until the earlier-filed patent is asserted in litigation.¹⁵⁹

In *Eli Lilly & Co.*, the reference patent issued from an independent application filed on April 8, 1983.¹⁶⁰ The challenged ‘549 patent claimed the benefit of an application filed January 10, 1974.¹⁶¹ The earlier-filed ‘549 disclosure had been cited against the ‘213 patent during examination and Eli Lilly successfully argued the patentability of the ‘213 patent to the Patent Office.¹⁶² In spite of this, the court reached the conclusion that the earlier-filed, later expiring¹⁶³ ‘549 patent was invalid for ODP over the later-filed,

¹⁵²*Ex parte* Collect LLC, No. 2021005302 (P.T.A.B. Dec. 1, 2021).

¹⁵³*See id.*

¹⁵⁴*Ex parte* Collect LLC, No. 2021005046 (P.T.A.B. Dec. 1, 2021).

¹⁵⁵*Ex parte* Collect LLC, No. 2021005303 (P.T.A.B. Dec. 1, 2021); *Ex parte* Collect LLC, No. 2021005258 (P.T.A.B. Dec. 1, 2021).

¹⁵⁶*See supra* notes 146–49.

¹⁵⁷*E.g.*, *Eli Lilly & Co. v. Barr Lab’ys, Inc.*, 251 F.3d 955, 973 (Fed. Cir. 2001) (noting that the challenged patent had been available to the UPTO during the examination of the reference patent).

¹⁵⁸*See id.*

¹⁵⁹*E.g.*, *id.* (noting that ODP was finally raised against the challenged patent in litigation).

¹⁶⁰*Id.* at 962.

¹⁶¹*Id.* at 959–60.

¹⁶²*Id.* at 973.

¹⁶³*Eli Lilly* was a pre-URAA case. An earlier-filed application could still issue as a patent later than the later-filed application for several reasons including USPTO delay. In such a case, an earlier-filed application could result in a later-expiring patent under the pre-URAA measure of patent term.

earlier expiring ‘213 patent.¹⁶⁴ Judge Newman in dissent called this result “anomalous.”¹⁶⁵ The panel had used ODP to invalidate patent protection on an invention that was made and in use for nine years before the filing of its invalidating reference.¹⁶⁶ This seems to be the exact opposite of how the patent system normally works. A patent is usually scrutinized for novelty and non-obviousness in view of earlier disclosures.¹⁶⁷ As such, the fate of the ‘549 patent could not have been achieved by a challenge under § 102 or § 103 because a later-filed patent is not prior art against an earlier-filed patent.¹⁶⁸ However, under an ODP analysis applied as patent patricide, as exemplified by *Eli Lilly*, a later filing could be used to invalidate an earlier filing.

A. The public policy of patent patricide

Most agree that patent patricide is bad policy.¹⁶⁹ For some patents, particularly pharmaceutical patents, a PTA can be worth billions of dollars.¹⁷⁰ Patentees commonly develop broad portfolios by filing continuation applications.¹⁷¹ However, if *In re Collect* had flung open the door to patent patricide, patentees may have curtailed their continuation practice and developed smaller portfolios.¹⁷² Patentees would have done so out of concern that later-filed continuations could invalidate their earlier-filed parent patents.¹⁷³ A common practice for patent applicants is to first obtain a narrow patent to protect some key aspect of an invention.¹⁷⁴ Patentees then rely on

¹⁶⁴See *Eli Lilly*, 251 F.3d at 972.

¹⁶⁵*Id.* at 973.

¹⁶⁶*Id.* at 975.

¹⁶⁷See *Graham v. John Deere Co. of Kan. City*, 383 U.S. 1, 3 (1966) (“Congress has for the first time expressly added a third statutory dimension to the two requirements of novelty and utility. . . . This is the test of obviousness.”).

¹⁶⁸*Eli Lilly & Co.*, 251 F.3d at 973; 35 U.S.C. § 102(b) (2000) (requiring patents to issue more than one year prior to the filing date of an application to be considered prior art); *accord* 35 U.S.C. § 102 (2015).

¹⁶⁹Kazhdan, *supra* note 8, at 1045.

¹⁷⁰*Id.* at 1046.

¹⁷¹See *id.*; Lemley & Moore, *supra* note 14, at 69 (“The results of our comprehensive study of patent continuations shows that 23% of all patents granted from 1976 through 2000 claim priority to one or more previously filed applications.”).

¹⁷²Kazhdan, *supra* note 8, at 1046.

¹⁷³*Id.*

¹⁷⁴Lemley & Moore, *supra* note 14, at 81; Timothy A. Cook et al., *Patent Term Adjustments in Jeopardy After In re Collect*, WILMER HALE (Aug. 30, 2023),

continuations to broaden the scope of their patent protection to newer developments and innovations, perhaps without an eye to whether the later-filed continuations were patentably distinct from the earlier, narrower patents.¹⁷⁵

With later-filed patents more likely to cause ODP invalidity in their earlier-filed patents, applicants would likely have begun to include more claims in individual applications.¹⁷⁶ Doing so activates the safe harbor for divisional applications, which prohibits ODP challenges to patents which issue from a divisional application filed as a result of an examiner's requirement for restriction.¹⁷⁷ Applicants would have only used continuations to prosecute claims that the applicant could be sure were patentably distinct from earlier-claimed inventions.¹⁷⁸

Not all observers would have regarded a curtailment of continuation practice as a bad thing. In one paper, the now Chief Judge of the Federal Circuit, Judge Kimberly Moore, explored the possibility of the outright abolition (and alternatives to abolition) of continuation applications in light of certain abuses of the patent system that continuations facilitate.¹⁷⁹ A prime example is the practice of patent evergreening in the pharmaceutical industry.¹⁸⁰ Under the Hatch-Waxman Act,¹⁸¹ a pharmaceutical company can list its patents in the FDA's "Orange Book."¹⁸² When a generic drug manufacturer files an abbreviated new drug application seeking permission from the FDA to bring a generic drug to market, a patentee can sue the generic for infringement of one of its Orange Book-listed patents.¹⁸³ The scheme was developed to promote competition in the pharmaceutical market. If the generic successfully proves invalidity or noninfringement, it wins a

<https://www.wilmerhale.com/insights/client-alerts/20230829-patent-term-adjustments-in-jeopardy-after-in-re-collect>.

¹⁷⁵See Lemley & Moore, *supra* note 14, at 81.

¹⁷⁶Cook et al., *supra* note 174.

¹⁷⁷See *id.* Under 35 U.S.C. § 121, if a single application contains two or more independent inventions, the USPTO can require the application to be restricted to one invention. The other being made the subject of a new divisional application. The statute then prohibits both courts and the USPTO from using an application that results from a restriction as a reference against any patent that issues from either application.

¹⁷⁸See Cook et al., *supra* note 174.

¹⁷⁹Lemley & Moore, *supra* note 14, at 93–94.

¹⁸⁰*Id.* at 81–82.

¹⁸¹*Id.* at 82.

¹⁸²*Id.*

¹⁸³*Id.*

period of generic market exclusivity.¹⁸⁴ However, when the name brand files suit, it obtains an automatic thirty-month stay on the generic drug entering the market.¹⁸⁵ This is where the evergreening abuse arises. If the name brand has accumulated several continuation patents covering the same drug, it can assert them sequentially, effectively keeping the generic off the market indefinitely with successive thirty-month stays.¹⁸⁶ This type of litigation sometimes ends with reverse-payment settlements, with the name-brand plaintiff paying the generic defendant to drop its invalidity and noninfringement contentions and stay off the market.¹⁸⁷ The Supreme Court has recognized that these reverse-payment settlements may constitute antitrust violations.¹⁸⁸

Members of Congress have expressed concern about evergreening and similar practices. In one letter from Senator Elizabeth Warren and Representative Pramila Jayapal to USPTO director Katherine Vidal, Warren and Jayapal express their concern that practices like evergreening, patent thickening,¹⁸⁹ and product hopping¹⁹⁰ are contributing to increased costs and decreased accessibility of prescription drugs.¹⁹¹ Warren and Jayapal reacted

¹⁸⁴F.T.C. v. Actavis, Inc., 570 U.S. 136, 143–44 (2013).

¹⁸⁵*Id.* at 155; Lemley & Moore, *supra* note 14, at 82.

¹⁸⁶Lemley & Moore, *supra* note 14, at 82.

¹⁸⁷*Actavis, Inc.*, 570 U.S. at 140–41.

¹⁸⁸*Id.* at 142 (“[R]everse payment settlements . . . can sometimes violate the antitrust laws.”). *Actavis* is required reading for anyone interested in the intersection between intellectual property and antitrust laws.

¹⁸⁹A “patent thicket” refers to “a multitude of overlapping patents” for the same product held by a single company for a strategic business advantage. Adam P. Hustad, *Competing With Patent Thickets: Antitrust Law’s Role in Promoting Biosimilars*, 102 B.U. L. REV. 675, 703 (2022). A patent thicket can be the basis of a pharmaceutical company’s evergreening strategy, but patent thickets are not exclusive to the pharmaceutical industry. *Id.*; e.g., *SCM Corp. v. Xerox Corp.*, 645 F.2d 1195 (2d Cir. 1981) (holding that Xerox’s photocopier patent thicket was not an antitrust violation). Companies often hold patent thickets to “improve their bargaining position and prevent competition.” Hustad, at 703.

¹⁹⁰“Product hopping can be broadly characterized as a branded manufacturer introducing a minor change to an existing prescription drug product and substantially shifting sales to the reformulated product, with the effect of inhibiting emerging competition from a generic version of the original branded product.” Michael S. Sinha, *Public Health Product Hops*, 73 AM. U. L. REV. 395, 405 (2023) (internal quotations omitted). This can be effective to extend market exclusivity if the brand has a later-expiring patent claiming the modified product. *See id.* at 430–431; *see also* CONGRESSIONAL RESEARCH SERVICE, DRUG PRICING AND PHARMACEUTICAL PATENTING PRACTICES 2 (2020) (describing product hopping).

¹⁹¹Letter from U.S. Senator Elizabeth Warren and Member of Congress Pramila Jayapal to USPTO Director Katherine Vidal (Dec. 5, 2022).

positively to director Vidal's suggestion that the USPTO would "[r]evisit [ODP] practice."¹⁹² In an earlier letter to FDA commissioner Dr. Robert Califf, Vidal had recognized that "multiple patents directed to obvious variants of an invention could potentially deter competition if the number of patents is prohibitively expensive to challenge"¹⁹³

The fact remains that the patent system is designed to promote and reward innovation. A balance must be drawn between ensuring that the patent system is effective to incentivize innovation while curtailing abuses of the patent system. In an Executive Order titled *Promoting Competition in the American Economy*, the White House contemplated a need to "avoid the potential for anticompetitive extension of market power beyond the scope of granted patents"¹⁹⁴ While the Federal Circuit has rejected the theory of patent patricide, a broader application of ODP within patent portfolios might be seen as part of a measured solution to this balancing of interests.

B. The Federal Circuit largely rejects Patent Patricide in Allergan v. MSN Laboratories

In August of 2024, the Federal Circuit swiftly resolved a split in authority regarding the viability of patent patricide, largely rejecting the theory.¹⁹⁵ In two separate cases, Judges Andrews and Williams of the District of Delaware had reached contrary conclusions regarding whether the holding of *Collect* could cause a later-filed child patent to be available as an ODP reference against an earlier-filed parent patent.¹⁹⁶ In *Allergan USA, Inc. v. MSN Lab 'ys Private Ltd.*, Judge Andrews held claim 40 of U.S. Patent No. 7,741,356 ("the '356 patent") invalid for ODP over reference patents U.S. Patent No. 8,344,011 ("the '011 patent") and U.S. Patent No. 8,608,709 ("the '709 patent").¹⁹⁷ The '356, '011, and '709 patents were members of the same family and shared the same priority date, but the '356 patent had received a

¹⁹²*Id.* at 3 (alteration in original).

¹⁹³Letter from USPTO Director Katherine Vidal to FDA Commissioner Dr. Robert Califf, M.D. (July 6, 2022).

¹⁹⁴Exec. Order. No. 14,036, 86 Fed. Reg. 36,987, 36,991 (July 9, 2021).

¹⁹⁵*Allergan USA, Inc. v. MSN Lab 'ys Priv. Ltd.*, 111 F.4th 1358 (Fed. Cir. 2024).

¹⁹⁶*Compare* *Acadia Pharms. Inc. v. Aurobindo Pharma Ltd.*, 706 F. Supp. 3d 477, 488 (D. Del. 2023) (Williams, J.) ("[A] patent must be earlier-filed to be available as an [ODP] reference.") with *Allergan USA, Inc. v. MSN Lab 'ys Priv. Ltd.*, 694 F. Supp. 3d 511, 540 (D. Del. 2023) (Andrews, J.) ("When analyzing ODP, a court compares patent expiration dates, rather than filing or issuance dates."), *rev'd*, 111 F.4th 1358 (Fed. Cir. 2024).

¹⁹⁷694 F. Supp. 3d at 540–41.

grant of PTA, making it subject to an ODP challenge under *In re Collect*.¹⁹⁸ Judge Andrews found the claims patentably indistinct and invalidated claim 40 of the '356 patent, based only on its later expiration date.¹⁹⁹ Citing *In re Collect*, Judge Andrews refused to consider the filing dates of the reference patents, stating flatly that "[t]he 'first-filed, first-issued' distinction is immaterial."²⁰⁰ The '356 patent was filed on March 14, 2005.²⁰¹ The '011 and '709 patents were filed on July 19, 2010 and October 6, 2005, respectively.²⁰² Thus, two later-filed but earlier-expiring reference patents were used to invalidate an earlier-filed and later-expiring challenged patent. Judge Andrews' read of *In re Collect* was that the double patenting analysis is blind to equitable concerns, leaving no exception for consideration of any dates but the expiration dates.²⁰³

Judge Williams arrived at a different conclusion in *Acadia Pharms. Inc. v. Aurobindo Pharma Ltd.*²⁰⁴ Judge Williams pointed to a statement in *In re Collect* that claims are entitled to their full term *unless* the challenged claims are found to be later-filed indistinct variations of earlier-filed, commonly-owned claims.²⁰⁵ He noted that although *In re Collect* did invalidate earlier-filed patents, *In re Collect*'s complicated procedural history likely prompted Collect to waive the filing-date argument in favor of arguments that were broadly applicable to all its rejected patents.²⁰⁶ Judge Williams also acknowledged Judge Andrews' holding in *Allergan* and found it unpersuasive in part because the *Allergan* court failed to consider the *In re Collect* court's discussion of "later-filed obvious variations of earlier-filed, commonly owned claims."²⁰⁷

Judge Williams's observations of the equitable problems with ignoring the filing dates are consistent with Judge Newman's concerns in her *Eli Lilly & Co.* dissent from rehearing en banc. In *Acadia*, Judge Williams opined that ODP is intended to prevent a patentee from improperly extending its

¹⁹⁸*Id.* at 540; *See* 81 F.4th 1216, 1229 (Fed. Cir. 2023).

¹⁹⁹*Allergan USA, Inc.*, 694 F. Supp. 3d at 540.

²⁰⁰*Id.*

²⁰¹U.S. Patent No. 7,741,356 at [22].

²⁰²U.S. Patent No. 8,344,011 at [22]; U.S. Patent No. 8,608,709 at [22].

²⁰³*Allergan USA, Inc.*, 694 F. Supp. 3d at 540.

²⁰⁴706 F. Supp. 3d 477, 488 (D. Del. 2023) (Williams, J.) ("[A] patent must be earlier-filed to be available as an OTDP reference.")

²⁰⁵*Id.* at 487.

²⁰⁶*Id.* at 487–88, 487 n.3.

²⁰⁷*Id.* at 488 n.4.

exclusionary rights to an invention it has already patented.²⁰⁸ If a later-filed patent is used as a reference against an earlier-filed patent, a finding of ODP arguably has the effect of punishing the patentee for continuing to prosecute applications by cutting off an already validly granted patent term.²⁰⁹ More than twenty years prior, in *Eli Lilly & Co.*, Judge Newman in dissent regarded the invalidation of a patent on an earlier discovery by ODP to be an incorrect statement of the law of double patenting.²¹⁰ She argued that “[t]he panel ha[d] reached the truly anomalous result of holding invalid for obviousness, on a theory of [ODP], an invention that was made and applied for nine years before the asserted [ODP reference] was filed.”²¹¹

Judges Williams and Newman’s concerns are vindicated by the Federal Circuit’s review of *Allergan*.²¹² After reviewing the URAA’s changes to the measure of a patent’s term and the resulting legal question resolved by *In re Collect*, the court confirmed that the *Collect* is controlling only to the extent that it allows ODP to be raised against a later-expiring related patent regardless of whether the difference in expiration date is caused solely by a different grant of PTA.²¹³ This is a significant update in the law, as it confirms that in the post-URAA context, ODP will apply between related patents in the same portfolio regardless of the fact that related patents would, by default, expire at the same time.²¹⁴ However, the *Allergan* court confirmed that beyond this extension of the ODP doctrine, the *Collect* court was silent.²¹⁵

To fill the gap, the *Allergan* court cited *Miller v. Eagle Mfg. Co.*²¹⁶ for the bedrock proposition that ODP applies to “prevent patentees from obtaining a *second* patent on a patentably indistinct invention to effectively extend the life of a *first* patent to that subject matter.”²¹⁷ The court held that the challenged patent was certainly not a *second* patent because it was filed

²⁰⁸*Id.* at 487.

²⁰⁹*Id.*

²¹⁰*See* 251 F.3d 955, 974 (Fed. Cir. 2001) (Newman, J., dissenting).

²¹¹*Id.* at 975 (alteration in original).

²¹²111 F.4th 1358, 1366–71 (Fed. Cir. 2024).

²¹³*See id.* at 1368.

²¹⁴*See id.* (“*Collect* established a rule that, when it comes to evaluating ODP on a patent that has received PTA, the relevant expiration date is the expiration date including PTA—not the original expiration date measured twenty years from the priority date.”).

²¹⁵*Id.* at 1368–69 (“*Collect* does not address, let alone resolve, any variation of the question presented here—namely, under what circumstances can a claim properly serve as an ODP reference—and therefore has little to say on the precise issue before us.”).

²¹⁶*See generally* 151 U.S. 186, 198 (1894).

²¹⁷*Allergan USA, Inc.*, 111 F.4th at 1369.

and issued before the ODP reference.²¹⁸ Under the holding of *Allergan*, patent patricide is unavailable in the most common parent-child relationship, where the parent is first-filed and first-issued, even if it is later-expiring.²¹⁹

Finally, in its analysis, the *Allergan* court distinguished itself from *Gilead Sciences*, where a later-issued, earlier-expiring patent was a qualified ODP reference against an earlier-issued and later-expiring patent which did not share a common priority date.²²⁰ In doing so, the court appears to have left open the question of whether a later-filed child is a valid ODP reference against a first-filed parent when the child is the first to *issue*. In the wake of *In re Cellect* and *Allergan*, this narrow situation may be the only place where patent patricide might still be found.

CONCLUSION

Under *In re Cellect*, the Federal Circuit confirmed that ODP will apply inside a patent portfolio, preventing patentees from extending the term of earlier claims by filing continuations and obtaining longer grants of PTA. In turn, *Allergan* prevents a broad application of patent patricide. Defendants can still enforce the term of a first-filed, first-issued parent against a later-filed, later-issued, later-expiring child. However, because the worst of patent patricide has been avoided, patentees may continue to develop portfolios without fear that their continuations will invalidate or shorten the terms of their earlier claims.

²¹⁸*Id.*

²¹⁹*See id.* (“We therefore hold that a first-filed, first-issued, later-expiring claim cannot be invalidated by a later-filed, later-issued, earlier-expiring reference claim having a common priority date.”).

²²⁰*Id.* at 1370.